

To:

The Director (Discipline)
The Institute of Chartered Accountants of India (ICAI)
ICAI Bhawan
Indraprastha Marg
New Delhi – 110002

1. COMPLAINANT DETAILS

Name: **Mr. Rajeev Kasat**
Address: **1203 Lanier Springs Drive, Buford, GA 30518, USA**
Email: **rajeevkasat@gmail.com**
Phone: **+1-404-988-5636 (WhatsApp available)**
Status: **Aggrieved person / Complainant**

2. RESPONDENT DETAILS

Name of Chartered Accountant: **Mr. Deepak Daga**
Membership No.: **206253**
Professional Address (as last known):
Shop 108–109, Telkar Chambers,
Vallabh Complex, Taranagar,
Serilingampally, Ranga Reddy District,
Hyderabad – 500019

I respectfully submit this complaint under the **Chartered Accountants Act, 1949**, alleging **professional misconduct and other misconduct** on the part of the Respondent. I request that the Institute conduct an **independent inquiry** and take **appropriate disciplinary action, including removal of his name from the Register of Members**, if the allegations are found to be established.

3. BACKGROUND

I am an Indian citizen presently residing abroad and working in the technology sector. I married Mrs. Radhika R. Kasat (née Bhattad) in May 2013. Over time, the Respondent, a Chartered Accountant by profession, became closely involved with my wife and her family and gradually inserted himself into deeply personal aspects of our marital, financial, spiritual, and legal affairs.

Based on events and documentation from approximately 2018 onwards (with particularly serious incidents between 2022–2024), I believe the Respondent has:

- misused his status as a Chartered Accountant,
- engaged in conduct unbecoming of a professional, and
- acted in ways that, if established, would seriously undermine public confidence in the profession and the ethical integrity expected of ICAI members.

For clarity, while certain events occurred within the broader context of my marital life, the allegations presented to ICAI relate strictly to the Respondent's conduct in his capacity as a practicing Chartered Accountant — specifically, his alleged misuse of professional standing, financial expertise, and references to regulatory authorities to influence or interfere in financial, legal, and personal decisions of my family.

It may also be relevant that until mid-2023, our family environment and financial arrangements were stable: we jointly purchased a home in the United States on 31 July 2023 (with my spouse formally agreeing to share EMI responsibilities), and her parents were scheduled to visit us in August 2023. The Respondent's intensified involvement — during a period when he had already become deeply entangled in our financial transactions and advice — preceded and overlapped with my wife's sudden departure from the U.S. on 23 September 2023.

My respectful submission is that the Respondent's alleged conduct — including misuse of CA credentials, threats invoking Income Tax and police authorities, opaque and irregular financial routing, and interference far outside the legitimate scope of professional practice — constitutes serious violations of the Chartered Accountants Act, 1949, and the ICAI Code of Ethics (including integrity, objectivity, professional behavior, and NOCLAR obligations). These matters are not matrimonial disputes; they concern misuse of professional status and breach of public trust.

I approach ICAI in good faith and with a genuine concern for the public interest. I am not seeking any personal or matrimonial relief from the Institute. My references to marital context are made solely to demonstrate how the Respondent's professional influence and financial involvement allegedly intersected with, and were used to interfere in, matters far outside his lawful scope of practice.

4. LIST OF KEY ALLEGATIONS (HEADS OF MISCONDUCT)

For clarity, I summarize the main allegations; details and evidence availability follow in Section 5.

A.1 Threats, intimidation, and boastful claims of being able to influence police, tax, and judicial authorities, creating reasonable apprehension of misuse of institutional connections.

A.2 Psychological manipulation and exploitation of superstition (black magic, vashikaran, manglik dosha etc.), leading to expensive rituals and destabilisation of my family life.

A.3 Inducement to initiate false criminal proceedings (including DV/498A/dowry allegations) as leverage in matrimonial disputes.

A.4 Inducement to stop paying agreed EMIs and to unlawfully remove my minor daughter from the United States to India and later Abu Dhabi, interfering in custody.

A.5 Fabrication of a false work-experience certificate for my wife on his CA firm's name, for a period when she was demonstrably not employed with him.

A.6 Misrepresentation and irregularities in a Chevella land transaction, including routing consideration through foreign education payments and third-party accounts, later mischaracterized as "dowry".

A.7 Questionable routing of high-value payments (including foreign remittances, jewellery purchases, third-party transfers and "our accounts"), proposals to take consideration in "black", and offers to provide "source of receipt for investments", indicating potential misuse of my NRI status and trust and possible non-compliance with tax, foreign-exchange, benami and anti-money-laundering related obligations.

A.8 Systematic misuse of his status as a Chartered Accountant and his position in community institutions to exert undue influence over my wife and her family in marital, spiritual, and financial matters.

A.9 Alleged coercive demands for large "settlement amounts", threats of misusing Income Tax machinery and police authorities, and extortion-like pressure during the November 2023 Westin meeting.

I am in possession of documents, audio recordings, electronic communications, and financial records supporting these allegations and will submit them in whatever form and sequence ICAI considers appropriate.

5. DETAILED ALLEGATIONS WITH EVIDENCE AVAILABILITY

B.1 Threats, Intimidation & Claims of Influence Over Authorities

Narrative

During, before, and after a meeting held at the Westin hotel in November 2023 (Hyderabad), the Respondent allegedly made a series of alarming statements, projecting himself as a person whose power “cannot be shaken” anywhere in India. He claimed, in substance, that he, his elder brother Shri Manoj Daga, and his son’s father-in-law, Shri Venugopal Malani, were so powerful that **“no one can shake them in the whole of India.”**

He further asserted that he could influence:

- politicians,
- Police Authorities,
- Income Tax officials, and
- courts,

and that he could “reach the highest levels” to create difficulties for me and my family. The tenor of these statements created a reasonable apprehension that he might misuse perceived connections with law-enforcement and regulatory agencies to harass or intimidate me, including the fear of being detained or implicated under some pretext.

Evidence Available (to be supplied on request)

- Audio recording of the November 2023 Westin meeting.
- My contemporaneous notes and messages summarizing these threats.

Impact

Such assertions, when made by a Chartered Accountant, strongly suggest a willingness to misuse perceived influence over public authorities, which undermines public confidence in institutions and amounts to serious “other misconduct” and potential “moral turpitude.”

These statements also created a clear impression that Income Tax enquiries, police action, and other State machinery could be weaponized against me unless I acceded to large “settlement” demands. If established, such conduct would amount to extortion-like misuse of professional standing by a practicing Chartered Accountant.

B.2 Psychological Manipulation & Exploitation of Superstition

Narrative

The Respondent allegedly engaged in a sustained pattern of psychological manipulation of my spouse, including:

- making false claims that I was involved in “black magic,” “vashikaran,” “sammohan/akarshan,” etc.,
- repeatedly describing me as spiritually dangerous or harmful,
- asserting that “divorce is in her destiny” and linking this to “manglik dosha”, and
- directing her towards dubious ‘tantriks’, ‘babas’, astrologers and similar superstition-based influencers, instead of encouraging legitimate medical, psychological or therapeutic support, despite my repeated written objections to him on WhatsApp over several years.

On the Respondent’s influence and assurances, my spouse reportedly underwent expensive rituals and poojas costing around ₹2,00,000 or more. These rituals were promoted as necessary for her protection and for dealing with supposed spiritual threats. The economic benefit flowed to third-party ritual performers; the pattern of referrals reasonably raises concern that the Respondent may have benefited, directly or indirectly, from these arrangements, though I do not presently have documentary proof of any commission.

Instead of encouraging rational, evidence-based counselling or established spiritual disciplines that promote mental balance (such as structured meditation, mantra chanting, or recognised therapeutic support), the Respondent allegedly fostered a fear-driven, superstition-based worldview that deepened my wife’s emotional dependence upon him and his circle.

Evidence Available (to be supplied on request)

- WhatsApp/other messaging records documenting references to black magic, doshas, rituals, etc.
- Bank/UPI/card transaction records showing payments for specific rituals.
- Portions of my wife’s own legal pleadings where such narratives appear.

Impact

This conduct destabilized our marriage, contributed to domestic conflict, and caused financial loss. When carried out by a Chartered Accountant, it amounts to misuse of personal influence in a manner that is grossly inconsistent with the dignity, integrity, and rational ethos expected of the profession.

B.3 Inducement to Initiate False Criminal Proceedings

Narrative

It is further alleged that the Respondent encouraged and pressured my spouse to file or threaten false criminal cases against me and my family members, including under:

- Domestic Violence Act,
- Section 498A IPC, and
- dowry-related provisions,

not as genuine grievance redressal, but as leverage in matrimonial and financial negotiations.

The sequence of events, and the language used in both the Respondent's legal notice and my wife's later legal filings, appear closely aligned in narrative and structure. This strongly suggests that he has played a guiding or coordinating role in shaping these proceedings.

Evidence Available (to be supplied on request)

- Legal notice issued by the Respondent's advocate bearing his signature.
- My spouse's legal notices and petitions.
- Messaging records indicating discussions about filing such cases for "pressure" or "settlement."

Impact

Encouraging baseless or exaggerated criminal filings amounts to abuse of legal machinery, causes grave reputational harm, and is inconsistent with a Chartered Accountant's duty of integrity, objectivity, and respect for law.

The alleged conduct also feeds into a wider public concern about the misuse of criminal provisions in matrimonial disputes and the weaponization of legal systems, which is particularly alarming when facilitated by a Chartered Accountant.

B.4 Inducement to Stop EMIs & Unlawful Removal of Minor Child

Narrative

It is alleged that the Respondent induced my spouse:

1. **To stop contributing towards the EMIs** on our jointly purchased home, despite her written commitment at the time of purchase to share the financial responsibility.
2. **To remove our minor daughter from the United States without my knowledge or consent**, leading to her sudden departure first to India and later to Abu Dhabi.

At a particularly painful moment, my minor daughter was present in the Respondent's Chartered Accountant office in Hyderabad. In that setting, he allegedly pressurised me to "return" the child to my wife under implicit threats and emotional coercion, despite having no legal guardianship or authority to detain or mediate access to the child.

Evidence Available (to be supplied on request)

- Written EMI commitment by my spouse.
- Travel records of my wife and child leaving the US.
- Photograph(s) and/or messages indicating my child's presence in the Respondent's CA office.
- Audio recording(s) from the meeting where I was pressed to hand the child back.
- WhatsApp messages relating to the cessation of EMIs and relocation.

Impact

Such interference in financial obligations and child custody arrangements, when orchestrated by a Chartered Accountant who is not a legal guardian or family elder, raises serious concerns about **moral turpitude**, "other misconduct," and conduct "unbecoming of a Chartered Accountant."

B.5 Fabrication of Work-Experience Certificate for My Wife

Narrative

It is alleged that the Respondent issued a work-experience certificate on his firm's letterhead in favor of my wife, Mrs. Radhika Kasat, purporting to show employment during a period when she was demonstrably not working for him and was, in fact, residing elsewhere. The certificate therefore appears to be false and misleading.

However, during the period claimed in the certificate:

- my wife was living with me in Bengaluru and/or travelling to the United States to study and appear for CPA examinations;
- she was not residing in Hyderabad and had no professional association with the Respondent's firm;
- no supporting records exist—such as salary slips, bank credits, TDS entries, PF/ESI records, or statutory filings—that would accompany genuine employment.

Based on the surrounding circumstances, the issuance of such a certificate appears to have occurred in the context of ongoing loans and financial assistance extended by me to the Respondent.

Evidence Available (to be supplied on request)

- Copy of the alleged work-experience certificate.
- Passport, visa, travel records showing my wife's presence outside Hyderabad/India.
- Prior employment records (e.g., Deloitte) and subsequent CPA-related documentation.
- Bank statements of my wife showing absence of salary credited from the Respondent's firm in the relevant period.

Impact

Issuing a false or misleading work-experience certificate on CA letterhead is, in itself, a grave professional lapse. If established, it directly involves fabrication of professional records and misrepresentation, squarely attracting serious professional misconduct under the Second Schedule.

B.6 Chevella Land Transaction: Misrepresentation & Mischaracterisation as Dowry

Narrative

I entered into a bona fide **sale transaction** to purchase a 50% share in a Chevella land parcel originally in the Respondent's name. The key features were:

- Total land value as per registration: approx. ₹4,59,000.
- My agreed 50% share: ₹2,29,500.
- A written sale agreement was sent to me (including by my spouse) confirming a 50% share in the land for consideration.

Instead of accepting the land-consideration directly, the Respondent, relying on his status and my trust in him as a Chartered Accountant, instructed me to:

- pay his son's foreign education fees to Monash University, Australia, and
- route additional amounts through other bank accounts, including a third party, and jewelers.

Of the tuition payments (₹9,48,986), ₹2,29,500 was later described as “land payment” and the remaining approx. ₹7,19,486 was in effect a personal loan extended under pressure. An additional ₹2,90,000 was transferred to a jeweler (Kabra Jewelers) for his family’s jewelry purchase, and ₹5,00,000 was routed through a third-party account (one Mr. Vishal Pujari Singh).

Subsequently, in a legal notice sent to me, the Respondent attempted to mischaracterize the Chevella land consideration as “dowry” or “gift,” in apparent contradiction to the documented sale understanding and financial flows.

Evidence Available (to be supplied on request)

- Chevella land sale agreement and related communications.
- Legal notice issued by the Respondent’s advocate.
- Bank and credit card statements showing payments to Monash University, Kabra Jewelers, and third-party accounts.
- WhatsApp/email messages where the nature and purpose of payments are discussed.

Impact

If established, this would amount to:

- Misrepresentation of a bona fide land sale as “dowry” for strategic/legal advantage.
- Questionable routing of funds instead of transparent sale consideration.
- Potentially serious concerns regarding tax reporting, benami-like structures, and misuse of professional trust.

These are matters are serious enough to warrant ICAI’s independent scrutiny and, if required, referral to appropriate regulatory agencies.

B.7 Questionable Fund Routing, Foreign Remittances & Possible Regulatory Concerns

Narrative

A pattern emerges in which the Respondent allegedly leveraged my NRI status and my reliance on his professional expertise as a Chartered Accountant to instruct me to route funds in ways that lacked transparency, proper documentation, and regulatory compliance, including:

- Payments totaling approximately ₹9,48,986 from my personal credit card to Monash University, Australia, between 16–18 February 2019, for the education of his son, Aman Daga, despite my having no legal or familial obligation to fund these expenses. Of this,

₹2,29,500 was later claimed by the Respondent as “land consideration” towards the Chevella property, and approximately ₹7,19,486 remains as an unaccounted personal loan extended under pressure.

- A jewelry purchase of around ₹2,90,000 paid by me to Kabra Jewelers on 8 November 2022, at a time when I was not even in India. I do not know who collected the jewelry, in whose name the invoice was raised, or whether applicable GST and tax disclosures were correctly made.
- A transfer of ₹5,00,000 routed through the account of one Mr. Vishal Pujari Singh, who appears to be a client or associate of the Respondent, without any clear written contract, invoice, or legitimate business purpose explained to me.
- Payments routed into accounts formally in the name of my mother-in-law, Smt. Padma Bhattad (including Mahesh Bank), but used in practice on the Respondent’s instructions in connection with his financial affairs.
- In WhatsApp messages, the Respondent further proposed that any sums I wished to transfer from the United States to India, “whatsoever be the reason”, should be sent to “our accounts”, assuring me that he would “give source of receipt for investments”. He also suggested other land/property deals in which part of the consideration would be taken “in black”. These statements, coming from a practising Chartered Accountant, reasonably suggest an intention to route funds through channels he controls in a manner that separates the apparent “source” from the true flow and purpose of the money.

In all these transactions, the Respondent relied on his standing as a Chartered Accountant and my trust in his professional judgment. I was not guided through any proper documentation, contracts, or tax/foreign-exchange compliance steps that I would reasonably expect from a CA.

Indicative Regulatory Concerns (for ICAI and Competent Authorities to Examine)

While I do not assert that specific statutory offences have already been established, these patterns reasonably raise, inter alia, the following concerns which only a formal investigation can clarify:

- **Foreign Exchange / FEMA Compliance:**
The use of my credit card and banking channels to remit large sums abroad for the Respondent’s son’s education, without clear documentation of source, purpose and regulatory filings, may raise questions under the Foreign Exchange Management Act (FEMA), including whether appropriate Form 15CA/CB or equivalent declarations were obtained and whether such proxy routing is permissible for this purpose.

- **Benami-like or Proxy Arrangements:**

Routing personal expenses and land-related consideration through third-party accounts (clients, relatives, or entities not formally party to the transaction) and using accounts in others' names to receive or move funds may indicate structures where the true beneficial ownership and financial control are obscured.

- **Tax Reporting & Possible Evasion:**

There is a reasonable question whether the Respondent has duly reported, in his income-tax returns or business/firm accounts, amounts representing:

- education expenses borne on his behalf,
- loans received from me,
- property-related consideration, and
- funds received via third-party accounts.

Similarly, whether the foreign remittances made by me on his behalf have been properly disclosed and are tax-compliant.

- **Use of Informal Value-Transfer / Money-Laundering-Type Arrangements:**

The suggestion that any funds I wished to send to India "whatsoever be the reason" should be routed to "our accounts", coupled with an assurance that he would "give source of receipt for investments" and proposals to take a portion of property consideration "in black", aligns with patterns of informal value transfer, layering and obfuscation of the true source and nature of funds. While I do not assert commission of any specific offence, these features warrant careful scrutiny by competent authorities.

Evidence Available (to be supplied on request)

- Bank and credit card statements showing remittances to Monash University, Kabra Jewelers, and third-party accounts.
- Cheque images and account details including Mahesh Bank and ICICI accounts linked to the Respondent's instructions.
- WhatsApp messages where the Respondent instructs how and where I should transfer money and how these amounts are later described (loan, gift, land payment, etc.).
- WhatsApp screenshots in which the Respondent uses expressions such as "our accounts" and "I will give source of receipt for investments", and refers to taking part of property consideration "in black".

Impact

These transactions and the manner in which they were engineered suggest that the Respondent may have misused his professional capacity as a Chartered Accountant to structure or route funds lacking transparency, clear documentation, or proper regulatory compliance. Even without pre-judging any specific statutory offence, such conduct, if established, is inconsistent with:

- the duty to comply with laws and regulations,
- the integrity and transparency expected of a Chartered Accountant, and
- the ethical requirement not to use professional knowledge to facilitate questionable arrangements.

I therefore respectfully request that ICAI, in addition to examining this as professional misconduct, consider whether these patterns warrant referral to appropriate agencies (such as Income Tax authorities, FIU, ED, or RBI/FEMA authorities) for independent investigation.

B.8 Misuse of CA Status & Community Position to Exert Undue Influence

Narrative

Throughout the period in question, the Respondent allegedly:

- held himself out not only as a Chartered Accountant but also as a trusted community figure (including as treasurer of Balbodhini Paathshaala in Hyderabad),
- used his office and professional premises for emotionally charged meetings relating to my marriage, child, and finances,
- inserted himself repeatedly into personal decisions (reconciliation, child access, property, legal strategy), despite having no legal or familial standing to do so.

The combination of:

- claims of influence over authorities,
- repeated advice on legal strategy,
- involvement in spiritual/superstition narratives, and
- financial entanglement,

created an ecosystem of **undue influence**, where my wife and her family were psychologically and emotionally dependent on the Respondent's guidance in matters extending far beyond any legitimate sphere of professional practice.

Evidence Available (to be supplied on request)

- Photos and messages indicating use of his CA office as venue for family coercion.
- Communication/s in which he advises or dictates legal/property decisions.
- Any available materials showing his role in community/religious institutions.

Impact

When a Chartered Accountant leverages professional status and social standing to unduly influence vulnerable individuals in matters of family, law, and finance, it gravely tarnishes the reputation of the profession and justifies the strongest disciplinary action.

B.9 Coercive Financial Demands, Threats of Misusing Tax/Police Machinery & Extortion-like Conduct

Narrative

In addition to the above conduct, a further and extremely serious pattern emerged during the November 2023 Westin meeting in Hyderabad. In that meeting, the Respondent allegedly used his status as a practicing Chartered Accountant, his claimed connections to Income Tax officials, police authorities, influential clients, and the professional standing of his elder brother (also a Chartered Accountant), in a manner that created intense pressure on me and my family.

Specifically, the Respondent allegedly:

- demanded an exorbitant "settlement amount" in the range of ₹3–7 crore, implying that failure to pay would result in serious legal and personal consequences
- stated that he and his brother Shri Manoj Daga (a Chartered Accountant with greater influence) and his son's father-in-law Shri Venugopal Malani were powerful enough to "finish" or "harass" me anywhere in India
- threatened or implied that **fabricated Income Tax raids** could be initiated against me and my family
- suggested that he could arrange for **unlawful police custody**, orchestrated 'trouble' from local politicians, and **misuse of his professional and client networks**, thereby creating significant coercive pressure.

- portrayed himself as someone who could control or influence legal and administrative outcomes by virtue of his professional network
- discouraged reconciliation between me and my spouse, allegedly because such reconciliation would require him to return borrowed sums, complete the Chevella land registration, and would eliminate any opportunity for a “settlement amount”
- directly or indirectly **abetted alienation of affection**, including implying that my spouse should consider alliances with individuals from an affluent individual known to him, in a manner that suggests interference in personal and family decisions for non-professional reasons.
- allegedly threatened and intimidated my father-in-law beforehand, warning him not to attend the reconciliation meeting, despite the fact that my father-in-law privately expressed support for peaceful reconciliation and contacted my family to say so
- created a coercive environment in which financial demands, threats, and misuse of professional credibility operated together

The Respondent’s alleged conduct in this meeting, taken cumulatively with the broader pattern described in earlier sections, suggests an attempt to exploit his status as a Chartered Accountant to:

- extract large financial sums through intimidation,
- weaponize the Income Tax and police systems as tools of pressure,
- interfere in marital and family decisions for personal benefit, and
- create fear of institutional retaliation unless demands were met.

Evidence Available (to be supplied on request)

- Audio recording of the November 2023 Westin meeting
- WhatsApp messages and communications preceding the meeting
- Communications involving my father-in-law before and after the meeting (details and supporting material available upon request)
- Messages indicating the Respondent’s role in discouraging reconciliation
- Records of the Respondent’s financial demands and references to “settlement amount”

Impact

If established, this conduct would amount to:

- gross misuse of professional status,
- conduct involving moral turpitude,
- behavior bringing disrepute to the profession of Chartered Accountancy,
- attempting to misuse or threaten misuse of his professional networks, the **Income Tax** and **police machinery** as **extortionary pressure or coercive leverage**, conduct which, if established, would amount to serious abuse of professional standing.
- coercive interference in matrimonial and family matters.

Such actions go far beyond private interpersonal conduct and strike at the integrity of the regulatory, financial, and law-enforcement ecosystem. They represent one of the most serious forms of professional misconduct contemplated under the ICAI Act and the Code of Ethics.

6. PROVISIONS OF THE CA ACT & CODE OF ETHICS POTENTIALLY ATTRACTED

Without limiting ICAI's own assessment, I respectfully submit that the conduct alleged above, if established, may attract the following provisions of the Chartered Accountants Act, 1949 and the ICAI Code of Ethics:

A. Misconduct under the First & Second Schedules (CA Act, 1949)

- **Acts bringing disrepute to the profession** (First Schedule Part IV).
- **Acts unbecoming of a Chartered Accountant**, including misuse of professional position for personal or financial advantage.
- **Misrepresentation** and issuance of **false or misleading documents** (e.g., fabricated work-experience certificate, mischaracterized financial transactions).
- **Gross negligence** and failure to maintain standards of professional competence and due care.
- **Failure to ensure compliance with applicable laws**, including tax, accounting, foreign-exchange (FEMA) related documentation, and transparency requirements.
- **Facilitating or participating in opaque, irregular, or non-transparent financial routing**, inconsistent with the duties of integrity and due diligence.
- **Conduct involving moral turpitude**, even outside formal professional assignments (Second Schedule Part II, read with judicial interpretation).
- **Threatening to misuse or attempting to misuse connections with tax authorities, police, or professional networks** for coercive leverage (potentially engaging Second Schedule Part I Clauses 2, 7, 8 and Part II).

B. Violations under the ICAI Code of Ethics (2020 Edition)

- **Integrity** – failure to be straightforward, honest, and truthful in professional and related conduct.
- **Objectivity** – impairment of judgment due to personal bias, conflicts of interest, or financial entanglements.
- **Professional Competence & Due Care** – advising or facilitating transactions lacking documentation, transparency, or regulatory compliance.
- **Professional Behavior** – using professional standing to interfere in private family, financial, or legal matters in a coercive or intimidating manner.
- **NOCLAR (Non-Compliance with Laws and Regulations)** – where a Chartered Accountant becomes aware of, participates in, or facilitates actions that may contravene tax, foreign-exchange, banking, or anti-corruption regulations.

Given the seriousness and breadth of the allegations—including misleading documentation, irregular financial routing, intimidation invoking regulatory bodies, and interference wholly outside professional scope—the matter merits strict disciplinary scrutiny. I trust ICAI will map each sub-allegation to the relevant clause(s) of the Schedules as it deems appropriate.

Clarification Regarding Use of Technical Terminology

I respectfully submit that I am not a legal or financial professional. Any references in this complaint to provisions of the CA Act, the Schedules, the Code of Ethics, FEMA, income-tax law, or other regulatory frameworks are made in good faith and solely to assist the Institute in identifying areas that may warrant examination.

I do not claim authoritative interpretation of any statute or clause. My intention is only to place factual conduct before ICAI so that the Institute, as the competent expert body, may independently determine the precise provisions applicable and assess the seriousness of the misconduct under its statutory framework.

Accordingly, I request that ICAI evaluate the Respondent's conduct strictly based on the facts and evidence, irrespective of any non-expert phrasing or limitations in my understanding of technical financial, tax, or regulatory terminology.

7. EVIDENCE AVAILABILITY

At this initial stage, I have **not enclosed full evidentiary material**, in order to avoid overburdening ICAI with voluminous records and to ensure that only relevant material is provided in a manner, format, and sequence deemed appropriate by the Institute.

However, I confirm that I am in possession of, inter alia:

- audio recordings (including the November 2023 Westin meeting),
- WhatsApp and other electronic communications,
- bank statements and credit card records,
- land agreements and financial instruments,
- legal notices and court pleadings,
- alleged work-experience certificates,
- travel and residency records,
- photographs and documents showing use of the Respondent's CA office in personal disputes.

I undertake to furnish any or all such materials promptly upon request from the Director (Discipline), the Board of Discipline, or the Disciplinary Committee.

I have not enclosed voluminous evidence at this stage solely to avoid burdening the Institute, and not due to any insufficiency of material. All evidence listed above is readily available and will be provided in the exact format ICAI requires.

8. PRAYER FOR DISCIPLINARY ACTION

In light of the serious and repeated nature of the alleged misconduct, the involvement of misrepresentation, possible financial impropriety, exploitation of vulnerable individuals, and conduct suggestive of moral turpitude, I respectfully pray that:

1. **A prima facie opinion be formed** under the Chartered Accountants Act, 1949, that the Respondent is guilty of professional and other misconduct.
2. **A Show Cause Notice** be issued to the Respondent.
3. The matter be placed before the **Disciplinary Committee** (rather than only the Board of Discipline), given the gravity and public-interest implications.
4. Upon inquiry and if the charges are established, **the Respondent's name be removed from the Register of Members** for an appropriate period or permanently, or such other major penalty as ICAI deems fit in the facts and circumstances.

5. ICAI may also, if it considers appropriate, forward relevant aspects of the case to statutory authorities (such as tax, economic, or enforcement agencies) for their independent examination.
6. That this complaint be processed expeditiously in accordance with the timelines prescribed under the Chartered Accountants Act, 1949 and the relevant Rules/Regulations, given the ongoing impact on my family and the broader public-interest concerns involved.

It is essential that members of the profession do not exploit their credentials in ways that erode public trust in tax administration, financial transparency, or the safety of families who rely on their advice. A strong disciplinary response in cases of serious misconduct not only protects individual complainants but reinforces confidence in the CA profession as a pillar of India's regulatory and economic system.

9. DECLARATION

I, **Rajeev Kasat**, hereby declare that:

- The facts stated in this complaint are true and correct to the best of my knowledge and belief.
- The allegations are based on my personal experience, contemporaneous records, and documents in my possession, or on information which I believe to be reliable.
- I understand that the Respondent is presumed innocent unless and until misconduct is established through due process, and I submit this complaint in good faith for ICAI's independent consideration.
- I am willing to appear, provide clarifications, and submit further documentation/evidence as may be required during the course of the inquiry.
- I further reserve my right to seek appropriate remedies before other statutory or governmental grievance-redressal mechanisms, but at this stage I place my faith in the Institute's independent disciplinary framework.
- I reserve my right to approach any other statutory, regulatory, or grievance-redressal mechanisms for appropriate remedies, including those available to citizens under Indian law, without prejudice to the present complaint.

Place:

Date:

Signature:

Name: Rajeev Kasat